

THE MINISTRY OF EDUCATION AND
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THE MINISTRY OF JUSTICE

HANOI LAW UNIVERSITY

**INFORMATION ON NEW RESEACH FINDINGS OF THE DOCTORAL
DISSERTATION**

Dissertation title: *Protection of intellectual property rights for pharmaceutical inventions in Vietnam in the context of international economic integration*

Specialty: International Law Code: 9.38.01.08

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Supervisor: Assoc. Dr. Hoang Phuoc Hiep and Dr. Tran Minh Ngoc

Training Institution: Hanoi Law University

SUMMARY OF NEW RESEARCH FINDINGS

The thesis is a comprehensive research work of theoretical and legal issues on protection of intellectual property rights for pharmaceutical inventions under international law as well as legal issues and the practice of protecting intellectual property rights for pharmaceutical inventions in Vietnam. On the basis of inheriting previous research results relating to the topic, the thesis has made the following contributions to knowledge:

First, the thesis has developed the concept of pharmaceutical invention, thereby clarifying the characteristics of pharmaceutical invention as well as the specifics of protection of intellectual property rights for pharmaceutical inventions.

Second, the thesis has systematically analyzed some basic theoretical issues of international law on protection of intellectual property rights for pharmaceutical inventions and requirements for protection of intellectual property rights for those inventions in the context of international economic integration.

Third, the thesis has analyzed more deeply and comprehensively evaluated international law and the law of some typical countries on protection of intellectual property rights for pharmaceutical inventions, indicating its future development trends.

Fourth, the thesis has comprehensively analyzed legal issues on protection of intellectual property rights for pharmaceutical inventions in Vietnam corresponding with the contents of international law in this regard, including: the scope and conditions for establishment of the rights, the content of the rights, and enforcement of the rights to pharmaceutical inventions.

Fifth, the thesis has assessed the practice of protection of intellectual property rights for pharmaceutical inventions from registration to establish the rights to measures to enforce the rights. Thereby, the thesis proposes a number of solutions to enhance the effectiveness in protection of intellectual property rights for those inventions in Vietnam in the context of extensive international economic integration, while ensuring the people's right to access essential medicines.